1951

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FAR EASTERN DEPARTMENT

JAPAN

37

FJ 1022/10

FROM

Armory Washington

To

Far Eastern Department.

No. 1079/141/50.

Dated 29th January 1950.

Received in Registry—3rd January 1951.

State Department Press Release No 1267 of December 28th – Aide Memoire delivered to M. Malik on proposals for Japanese Peace Treaty.

REFERENCES

FJ 1022/10

MINUTES

Copy to C.R.O. (R. Ross).

(C.P. Scott) 6/1.

(Print)

(How disposed of)

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(Action completed)

(Index)

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1951

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[redacted]

Embassy Washington

To

Far Eastern Department

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State Department Press Release No 1267 of December 28th – Aide Memoire delivered to Mr Nishi on proposals for Japanese Peace Treaty.

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AIR FREIGHT
Ref: 1079/141/50

(Enclosing State Department Press Release No. 1267 of December 28th, 1950 - Aide Memoire delivered to Mr. J.A. Malik in New York)

38

Forwarded with the Compliments

of the British Embassy,

Washington, D.C.

Far Eastern Department,
Foreign Office,
London, S.W.1.

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DEPARTMENT OF STATE

FOR THE PRESS

DECEMBER 28, 1950
No. 1267

39

CAUTION
FUTURE RELEASE
NOTE DATE

FOR RELEASE AT 7:00 P.M., E.S.T., THURSDAY, DECEMBER 28, 1950.
NOT TO BE PREVIOUSLY PUBLISHED, QUOTED FROM OR USED IN ANY WAY.

The following Aide Memoire was delivered to Mr. J. A. Malik in New York this afternoon:

"On November 20 of this year Mr. Malik presented to Mr. Dulles an aide-memoire expressing the desire of the Soviet Government for clarification of a number of points in a tentative United States statement of principles respecting a Japanese peace treaty given Mr. Malik by Mr. Dulles on October 26. After careful study of the Soviet aide-memoire of November 20, the United States Government has concluded that most of the questions raised by the Soviet Government have in fact been answered by the statement of principles given to Mr. Malik on October 26. However, in order to dispel any possible misunderstanding, the points raised by the Soviet Government are further discussed as follows:

"1. The United States Government hopes that all nations at war with Japan will participate in the conclusion of peace. The United States does not, however, concede that any one nation has a perpetual power to veto the conclusion by others of peace with Japan. The wartime declaration of January 1, 1942, referred to by the Soviet Union, was designed to assure that all nations at war with Japan, or with the other Axis powers or their associates, would continue to fight until victory had been won. That they did. The United States does not accept the thesis, often put forward by the Soviet Union, that there cannot be peace except on terms that one power dictates. Japan, after its defeat, has now for over five years loyally complied with the agreed terms of surrender and is entitled to peace. The United States should be glad to know whether it is the view of the Soviet Union that there can never be any peace with Japan unless terms can be found which are fully satisfactory to each one of the 47 nations which signed or adhered to the Declaration of January 1, 1942.

"2. The Cairo Declaration of 1943 stated the purpose to restore 'Manchuria, Formosa and the Pescadores to the Republic of China'. That Declaration, like other wartime declarations such as those of Yalta and Potsdam, was in the opinion of the United States Government subject to any final peace settlement where all relevant factors should be considered. The United States cannot accept the view, apparently put forward by the Soviet Government, that the views of other Allies not represented at Cairo must be wholly ignored. Also the United States believes that declarations such as that issued at Cairo must necessarily be considered in the light of the United Nations Charter, the obligations of which prevail over any other international agreement.

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"3. The United States Government does not understand the reference by the Soviet Union to 'territorial expansion' in connection with the suggestion that the Ryukyu and Bonin Islands might be placed under the United Nations trusteeship system, with the United States as administering authority. Article 77 of the United Nations Charter expressly contemplated the extension of the trusteeship system to 'territories which may be detached from enemy states as a result of the Second World War' and certainly the trusteeship system is not to be equated with 'territorial expansion'.

"The Government of the United States also does not understand the suggestion of the Soviet Union that because the Ryukyu and Bonin Islands are not mentioned in either the Cairo Declaration or the Potsdam Agreement, their consideration in the peace settlement is automatically excluded. The Government of the Soviet Union seems to have ignored the fact that the Potsdam Declaration provided that Japanese sovereignty should be limited to the four main islands, which were named, and 'such minor islands as we determine'. It is, therefore, strictly in accordance with the Potsdam Agreement that the peace settlement should determine the future status of these other islands.

"4. It is the view of the United States Government that, upon conclusion of a peace settlement, the military occupation of Japan would cease. The fact that a 'new order of peace, security and justice,' as envisaged in the Potsdam Declaration, has not been established, and that irresponsible militarism has not been driven from the world, would at the same time make it reasonable for Japan to participate with the United States and other nations in arrangements for individual and collective self-defense, such as are envisaged by the United Nations Charter and particularly Article 51 thereof. These arrangements could include provision for the stationing in Japan of troops of the United States and other nations.

"The United States does not propose for Japan a peace settlement which will deny to Japan what Prime Minister Stalin has described (March 10, 1939) as 'the policy of collective security, the policy of collective resistance to the aggressors'.

"5. Referring to a policy decision of the Far Eastern Commission, which decisions have been commonly considered to be legally operative only for the period of the occupation except as the substance of particular provisions may be embodied in the peace settlement, the Soviet Government raises two questions relating to the security of Japan after the conclusion of a peace treaty.

"Both questions are answered by paragraph 4 of the statement of principles handed to Mr. Malik on October 26 and by the comment thereon expressed above.

"6. The United States considers that the Japanese peace treaty should not limit the Japanese peacetime economy nor deny Japan access to sources of raw material or participation in world trade. The United States, without awaiting the formal conclusion of peace, has made very large financial grants to Japan to enable it to acquire food and raw materials needed for its economic livelihood and has encouraged the establishment by Japan of trade promotion offices in many parts of the world in an effort to help Japan to develop a prosperous peacetime economy and steadily advance the living standards of the Japanese people.

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"7. The present conversations are being conducted by the United States through diplomatic channels and, as the Soviet Union well knows, the Government of the United States has no diplomatic relations with the so-called 'Government of the Chinese People's Republic'.

"It is the earnest hope of the United States that the close attention which the Government of the Soviet Union has given to the peace proposals of the United States in relation to Japan signifies the desire and intention of the Soviet Union not only to enter into discussions of a peace treaty for Japan but to act in cooperation with other nations at war with Japan to make peace a reality.

"Department of State,

"Washington, December 27, 1950."

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